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U. S. Congress. Senate. Select Committee on affairs in Indian Territory.

REPORT

OF

THE SELECT COMMITTEE

TO INVESTIGATE MATTERS
CONNECTED WITH

AFFAIRS IN THE INDIAN TERRITORY

WITH

HEARINGS

NOVEMBER 11, 1906–JANUARY 9, 1907

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STATEMENT OF REDBIRD SMITH.

(Mr. John R. Smith, interpreter.)

By the CHAIRMAN:

Q. What is your name?—A. Redbird Smith.

Q. Where do you live?—A. Near Campbell, Ind. T.

Q. (To the interpreter). What is your name?—A. John R. Smith.

Q. Where do you live?—A. I live near Campbell, I. T.

Q. (To Redbird Smith.) Are you a full-blood Indian?—A. I am a Cherokee Indian.

Q. Are you a full blood or part blood?

The INTERPRETER. From my experience he must be a full blood.

A. I think I must be a full blood; I don't know, but I think I am.

Q. From your experience you must be a full-blood Cherokee Indian?—A. Yes, sir.

Q. Well, go ahead and state what you have to say.—A. To-day I am more than glad to meet my old fathers. To-day has been intended by our God, who rules over our souls and looks on us, that we should meet together and talk together over the things that trouble the Indians. Now I would like to say a few words, but I am not educated and I can't talk English very well and don't know much about the English and it is hard for me to explain what I want you to understand from me. It is hard for me to explain it to you.

Q. Yes, we know it, Mr. Smith, that is all right. We appreciate the difficulty you are under, Mr. Smith, but go ahead and do the best you can.—A. The people that live at their homes in the different districts of the Cherokee people of the full bloods have sent me here to-day to talk with you, and to come before your respected committee, that I now have the opportunity to express my remarks to you. The condition of the four nations together, and we the full-blood Indians, there is still a great many of us that still contends for our original rights. We want our old original rights which our grandfathers made; a treaty and agreement with one another in the presence of our God, and declared that we would love it and respect it as we love our God, and we have done so up to the present time. We made that treaty and agreement with the great father that we love at Washington, and he guaranteed with us when that treaty was made that it would remain as long as the grass grows, trees grow, water runs, and the sun rises and shines. I mean that the United States Government was to be the guardian of the Indians. I live under these respective treaties that have been made between the Government of the United States and the Indians, and I am resting now under these treaties, but I am suffering from the infraction of them. I have suffered in the past and I am still suffering up to this date. According to the treaty I made with my father I am trying to live in peace and happiness and friendship, and raise my children up in good, and I am respecting these treaties and have respected them up to this time.

At the present time the Indian's land is divided up in severalty and that was done without my agreement or consent, for I never agreed or consented for anyone to make any such a treaty and the full-blood Indians never consented to it. I never consented to any

agreement to divide up my land, and I don't want it divided up. I want the old treaty. When the Dawes Commission was here for the purpose of making the enrollment for final settlement by the allotment of the land, I stood up for my rights. I stood for the treaties and agreements that were made by my fathers with the Government of the United States; and I was at home enjoying myself in peace when I was arrested and taken to prison. I and several other Indians were arrested and taken together to the Muskogee jail for standing up for our rights—my own old treaty with the United States Government—as I have always stood for it without violating any part of it, nor have I violated any law.

By Senator LONG:

Q. How long did they keep you there?—A. One night. On Saturday evening they put me in jail and they kept me all night in jail and on Sunday morning they let me out, and then they took me to the commissioner's office and made me enroll against my will.

Q. Have you taken your allotment?—A. No, sir; not up to the present time.

Q. Do you live at the present time where you used to live?—A. I live on my own improved land, at home.

Q. That is the same place where you have lived all the time?—A. Yes, sir; it is my own improved land and I live on it.

Q. How long have you lived there?—A. About twelve years.

Q. Have they tried to take it away from you?—A. No, sir; they have not tried to take my home where I live away from me; but my people are reporting every day that they are taking the improved land and homes that they have made with their own labor, and made crops on the improved land, and they have taken it away from us; and here now, at the present time, I report the conditions of myself and my people; and I stand here underneath the father, and in his presence, asking for help and protection from the powerful who are going to take my land from me. I stand here before the father asking for this protection and help as a little child asks for the protection and help of its father—for when a child wants help, where can it go but to its father? And so as a little child I come to you for this help and protection; so I announce to you myself as a little child and look to you, my father, as my protector and guardian.

As the patent has been issued by the acts of the United States and presented to me, positively, as a Cherokee Indian, I am standing on that patent for the land, and I am standing on all my rights and contending for it all as my patent dictates, and I want my land to be in all of the whole nation as my patent directs. This is what I am after and what I want [presenting a photograph of treaty to committee]. You will see it there as it has been photographed from the deed and the patent. Now, that is all I have to show, but it is a photograph of the patent; and I show it to you to show you that I respect and keep my own agreement; and I look upon this feather [presenting an eagle feather to committee]—I look upon this feather as my crown, and I will present it to you to show you the respect that we have, as Cherokee Indians, for our treaty. When the treaty was made with the Government of the United States by our great-grandfathers—by my great-grandfather—he took the feather as it was intended by God to help the Indians; and I think it is suffi-

p. 98 · 'I never consented to any agreement to divide up my land, and I don't want it divided up. I want the old treaty.'